

ORIGINAL

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Daniel D. Domenico**

Civil Action No. 1:20-cv-01194-DDD-MDB

HAMKIM INC., d/b/a Vista Inn,

Plaintiff,

v.

AMGUARD INSURANCE COMPANY, a/k/a Berkshire Hathaway Insurance
Companies, a/k/a Berkshire Hathaway Inc.,

Defendant.

VERDICT FORM

We, the Jury, being duly empaneled and sworn to try the above-entitled case, unanimously find the following answers to the questions submitted by the Court.

CLAIM 1: BREACH OF CONTRACT

Question 1:

(a) Did HamKim prove by the preponderance of the evidence the elements of its claim of breach of contract as described in Instruction No. 11?

☒ YES ☐ NO

If you answered "YES" to Question 1(a), then proceed to Question 1(b). If you answered "NO" to Question 1(a), then skip Questions 1(b)-(d) and proceed to Question 2.

(b) Did HamKim prove by a preponderance of the evidence that it had general damages as a result of AmGUARD's breach of the insurance contract as described in Instruction No. 13?

☒ YES ☐ NO

If you answered "YES" to Question 1(b), then proceed to Question 1(c). If you answered "NO" to Question 1(b), then skip Question 1(c) and proceed to Question 1(d).

(c) State the amount of general damages required to compensate HamKim for losses that are the natural and probable consequence of AmGUARD's breach of the insurance contract:

\$ 700,000

If you answered Question 1(c), then skip Question 1(d) and proceed to Question 2.

(d) You have found that HamKim has failed to prove general damages, and you must award HamKim nominal damages in the sum of one dollar:

\$ _____

Please proceed to Question 2 on the next page.

CLAIM 2: UNREASONABLE DENIAL OF BENEFITS

Question 2:

(a) Did HamKim prove by a preponderance of the evidence the elements of its claim of unreasonable denial of payment of benefits as described in Instruction No. 14?

X YES _____ NO

If you answered "YES" to Question 2(a), then proceed to Question 2(b). If you answered "NO" to Question 2(a), then skip Question 2(b) and proceed to Question 3.

(b) State the amount of the benefits that HamKim has proved by a preponderance of the evidence were denied without a reasonable basis as described in Instruction No. 16:

\$ 700,000
~~\$ 1,400,000.00~~ *Mei*

Please proceed to Question 3 on the next page.

CLAIM 3: BAD FAITH BREACH OF INSURANCE CONTRACT

Question 3:

(a) Did HamKim prove by a preponderance of the evidence the elements of its claim bad faith breach of insurance contract as described in Instruction No. 17?

X YES _____ NO

If you answered "YES" to Question 3(a), then proceed to Question 3(b). If you answered "NO" to Question 3(a), then skip Questions 3(b)-(d) and proceed to Question 4.

(b) State the amount of the damages, if any, that HamKim has proved by a preponderance of the evidence were caused by AmGUARD's bad faith breach of the insurance contract as described in Instruction No. 19:

880,000
\$ 745,000 *Whe*

If you answered Question 3(b), then proceed to Question 3(c).

(c) Did HamKim prove beyond a reasonable doubt that AmGUARD acted in a willful and wanton manner in causing HamKim's damages as described in Instruction No. 20?

☒ YES ☐ NO

If you answered "YES" to Question 3(c), then proceed to Question 3(d). If you answered "NO" to Question 3(c), then skip Question 3(d) and proceed to Question 4.

(d) State the amount of punitive damages, if any, you award to HamKim to punish AmGUARD for its bad faith breach of the insurance contract and to serve as an example to others:

\$ 1,500,000.00

Please proceed to Question 4 on the next page.

DAMAGES

*Answer Question 4 **only if** you answered “YES” to more than one of Questions 1(a), 2(a), and 3(a) above. If you answered “YES” to only one of those questions, or if you answered “NO” to all of those questions, then skip Question 4 and proceed to sign and date the verdict form on the next page.*

Question 4: Based on Instruction No. 21 and your answers to Questions 1(c) or (d), 2(b), and/or 3(b) above, state the total amount of damages you award to HamKim for its losses due to AmGUARD’s breach of contract, unreasonable denial of payment of benefits, and/or bad faith breach of insurance contract:

\$ 2,380,000.00

Please proceed to sign and date the verdict form on the next page.

SIGNATURE

Juror signature redacted.

Foreperson

Dated this 5 day of May, 2023.